Reply to Objection 2: Nothing prevents one specific kind of sin being found in various generic kinds of sin, inasmuch as various sins are directed to the end of one sin, just as happens in the case of virtues commanded by one virtue. In this way, by whatever kind of sin a man acts counter to reverence due to sacred things, he commits a sacrilege formally; although his act contains various kinds of sin materially.

Reply to Objection 3: Sacrilege is sometimes found apart from other sins, through its act having no other deformity than the violation of a sacred thing: for instance, if a judge were to take a person from a sacred place for he might lawfully have taken him from elsewhere.

Whether the species of sacrilege are distinguished according to the sacred things?

Objection 1: It would seem that the species of sacrilege are not distinguished according to the sacred things. Material diversity does not differentiate species, if the formal aspect remains the same. Now there would seem to be the same formal aspect of sin in all violations of sacred things, and that the only difference is one of matter. Therefore the species of sacrilege are not distinguished thereby.

Objection 2: Further, it does not seem possible that things belonging to the same species should at the same time differ specifically. Now murder, theft, and unlawful intercourse, are different species of sin. Therefore they cannot belong to the one same species of sacrilege: and consequently it seems that the species of sacrilege are distinguished in accordance with the species of other sins, and not according to the various sacred things.

Objection 3: Further, among sacred things sacred persons are reckoned. If, therefore, one species of sacrilege arises from the violation of a sacred person, it would follow that every sin committed by a sacred person is a sacrilege, since every sin violates the person of the sinner. Therefore the species of sacrilege are not reckoned according to the sacred things.

On the contrary, Acts and habits are distinguished by their objects. Now the sacred thing is the object of sacrilege, as stated above (A[1]). Therefore the species of sacrilege are distinguished according to the sacred things.

I answer that, As stated above (A[1]), the sin of sacrilege consists in the irreverent treatment of a sacred thing. Now reverence is due to a sacred thing by reason of its holiness: and consequently the species of sacrilege must needs be distinguished according to the different aspects of sanctity in the sacred things which are treated irreverently: for the greater the holiness ascribed to the sacred thing that is sinned against, the more grievous the sacrilege.

Now holiness is ascribed, not only to sacred persons, namely, those who are consecrated to the divine worship, but also to sacred places and to certain other sacred things. And the holiness of a place is directed to the holiness of man, who worships God in a holy place. For it is written (2 Macc. 5:19): "God did not choose the people for the place's sake, but the place for the people's sake." Hence sacrilege committed against a sacred person is a graver sin than that which is committed against a sacred place. Yet in either species there are various degrees of sacrilege, according to differences of sacred persons and places.

In like manner the third species of sacrilege, which is committed against other sacred things, has various degrees, according to the differences of sacred things. Among these the highest place belongs to the sacraments whereby man is sanctified: chief of which is the sacrament of the Eucharist,

for it contains Christ Himself. Wherefore the sacrilege that is committed against this sacrament is the gravest of all. The second place, after the sacraments, belongs to the vessels consecrated for the administration of the sacraments; also sacred images, and the relics of the saints, wherein the very persons of the saints, so to speak, are reverenced and honored. After these come things connected with the apparel of the Church and its ministers; and those things, whether movable or immovable, that are deputed to the upkeep of the ministers. And whoever sins against any one of the aforesaid incurs the crime of sacrilege.

Reply to Objection 1: There is not the same aspect of holiness in all the aforesaid: wherefore the diversity of sacred things is not only a material, but also a formal difference.

Reply to Objection 2: Nothing hinders two things from belonging to one species in one respect, and to different species in another respect. Thus Socrates and Plato belong to the one species, "animal," but differ in the species "colored thing," if one be white and the other black. In like manner it is possible for two sins to differ specifically as to their material acts, and to belong to the same species as regards the one formal aspect of sacrilege: for instance, the violation of a nun by blows or by copulation.

Reply to Objection 3: Every sin committed by a sacred person is a sacrilege materially and accidentally as it were. Hence Jerome [*The quotation is from St. Bernard, De Consideration, ii, 13] says that "a trifle on a priest's lips is a sacrilege or a blasphemy." But formally and properly speaking a sin committed by a sacred person is a sacrilege only when it is committed against his holiness, for instance if a virgin consecrated to God be guilty of fornication: and the same is to be said of other instances.

Whether the punishment of sacrilege should be pecuniary?

Objection 1: It would seem that the punishment of sacrilege should not be pecuniary. A pecuniary punishment is not wont to be inflicted for a criminal fault. But sacrilege is a criminal fault, wherefore it is punished by capital sentence according to civil law [*Dig. xlviii, 13; Cod. i, 3, de Episc. et Cleric.]. Therefore sacrilege should not be awarded a pecuniary punishment.

Objection 2: Further, the same sin should not receive a double punishment, according to Nahum 1:9, "There shall not rise a double affliction." But sacrilege is punished with excommunication; major excommunication, for violating a sacred person, and for burning or destroying a church, and minor excommunication for other sacrileges. Therefore sacrilege should not be awarded a pecuniary punishment.

Objection 3: Further, the Apostle says (1 Thess. 2:5): "Neither have we taken an occasion of covetousness." But it seems to involve an occasion of covetousness that a pecuniary punishment should be exacted for the violation of a sacred thing. Therefore this does not seem to be a fitting punishment of sacrilege.

On the contrary, It is written [*XVII, qu. iv, can. Si quis contumax]: "If anyone contumaciously or arrogantly take away by force an escaped slave from the confines of a church he shall pay nine hundred soldi": and again further on (XVII, qu. iv, can. Quisquis inventus, can. 21): "Whoever is found guilty of sacrilege shall pay thirty pounds of tried purest silver."

I answer that, In the award of punishments two points must be considered. First equality, in order that the punishment may be just, and that "by what things a man sinneth by the same . . . he

may be tormented" (Wis. 11:17). In this respect the fitting punishment of one guilty of sacrilege, since he has done an injury to a sacred thing, is excommunication [*Append. Gratian. on can. Si quis contumax, quoted above] whereby sacred things are withheld from him. The second point to be considered is utility. For punishments are inflicted as medicines, that men being deterred thereby may desist from sin. Now it would seem that the sacrilegious man, who reverences not sacred things, is not sufficiently deterred from sinning by sacred things being withheld from him, since he has no care for them. Wherefore according to human laws he is sentenced to capital punishment, and according to the statutes of the Church, which does not inflict the death of the body, a pecuniary punishment is inflicted, in order that men may be deterred from sacrilege, at least by temporal punishments.

Reply to Objection 1: The Church inflicts not the death of the body, but excommunication in its stead.

Reply to Objection 2: When one punishment is not sufficient to deter a man from sin, a double punishment must be inflicted. Wherefore it was necessary to inflict some kind of temporal punishment in addition to the punishment of excommunication, in order to coerce those who despise spiritual things.

Reply to Objection 3: If money were exacted without a reasonable cause, this would seem to involve an occasion of covetousness. But when it is exacted for the purpose of man's correction, it has a manifest utility, and consequently involves no occasion of avarice.

ON SIMONY (SIX ARTICLES)

We must now consider simony, under which head there are six points of inquiry:

(1) What is simony?

(2) Whether it is lawful to accept money for the sacraments?

(3) Whether it is lawful to accept money for spiritual actions?

(4) Whether it is lawful to sell things connected with spirituals?

(5) Whether real remuneration alone makes a man guilty of simony, or also oral remuneration or remuneration by service?

(6) Of the punishment of simony.

Whether simony is an intentional will to buy or sell something spiritual or connected with a spiritual thing?

Objection 1: It would seem that simony is not "an express will to buy or sell something spiritual or connected with a spiritual thing." Simony is heresy, since it is written (I, qu. i [*Can. Eos qui per pecunias.]): "The impious heresy of Macedonius and of those who with him impugned the Holy Ghost, is more endurable than that of those who are guilty of simony: since the former in their ravings maintained that the Holy Spirit of Father and Son is a creature and the slave of God, whereas the latter make the same Holy Spirit to be their own slave. For every master sells what he has just as he wills, whether it be his slave or any other of his possessions." But unbelief, like faith, is an act not of the will but of the intellect, as shown above (Q[10], A[2]). Therefore simony should not be defined as an act of the will.

Objection 2: Further, to sin intentionally is to sin through malice, and this is to sin against the Holy Ghost. Therefore, if simony is an intentional will to sin, it would seem that it is always a sin against the Holy Ghost.

Objection 3: Further, nothing is more spiritual than the kingdom of heaven. But it is lawful to buy the kingdom of heaven: for Gregory says in a homily (v, in Ev.): "The kingdom of heaven is worth as much as you possess." Therefore simony does not consist in a will to buy something spiritual.

Objection 4: Further, simony takes its name from Simon the magician, of whom we read (Acts 8:18,19) that "he offered the apostles money" that he might buy a spiritual power, in order, to wit, "that on whomsoever he imposed his hand they might receive the Holy Ghost." But we do not read that he wished to sell anything. Therefore simony is not the will to sell a spiritual thing.

Objection 5: Further, there are many other voluntary commutations besides buying and selling, such as exchange and transaction [*A kind of legal compromise---Oxford Dictionary]. Therefore it would seem that simony is defined insufficiently.

Objection 6: Further, anything connected with spiritual things is itself spiritual. Therefore it is superfluous to add "or connected with spiritual things."

Objection 7: Further, according to some, the Pope cannot commit simony: yet he can buy or sell something spiritual. Therefore simony is not the will to buy or sell something spiritual or connected with a spiritual thing.

On the contrary, Gregory VII says (Regist. [*Caus. I, qu. i, can. Presbyter, qu. iii, can. Altare]): "None of the faithful is ignorant that buying or selling altars, tithes, or the Holy Ghost is the heresy of simony."

I answer that, As stated above (FS, Q[18], A[2]) an act is evil generically when it bears on undue matter. Now a spiritual thing is undue matter for buying and selling for three reasons. First, because a spiritual thing cannot be appraised at any earthly price, even as it is said concerning wisdom (Prov. 3:15), "she is more precious than all riches, and all things that are desired, are not to be compared with her": and for this reason Peter, in condemning the wickedness of Simon in its very source, said (Acts 8:20): "Keep thy money to thyself to perish with thee, because thou hast thought that the gift of God may be purchased with money."

Secondly, because a thing cannot be due matter for sale if the vendor is not the owner thereof, as appears from the authority quoted (OBJ[1]). Now ecclesiastical superiors are not owners, but dispensers of spiritual things, according to 1 Cor. 4:1, "Let a man so account of us as of the ministers of Christ, and the dispensers of the ministers of God."

Thirdly, because sale is opposed to the source of spiritual things, since they flow from the gratuitous will of God. Wherefore Our Lord said (Mat. 10:8): "Freely have you received, freely give."

Therefore by buying or selling a spiritual thing, a man treats God and divine things with irreverence, and consequently commits a sin of irreligion.

Reply to Objection 1: Just as religion consists in a kind of protestation of faith, without, sometimes, faith being in one's heart, so too the vices opposed to religion include a certain protestation of unbelief without, sometimes, unbelief being in the mind. Accordingly simony is said to be a "heresy," as regards the outward protestation, since by selling a gift of the Holy Ghost a man declares, in a way, that he is the owner of a spiritual gift; and this is heretical. It must, however, be observed that Simon Magus, besides wishing the apostles to sell him a grace of the

Holy Ghost for money, said that the world was not created by God, but by some heavenly power, as Isidore states (Etym. viii, 5): and so for this reason simoniacs are reckoned with other heretics, as appears from Augustine's book on heretics.

Reply to Objection 2: As stated above (Q[58], A[4]), justice, with all its parts, and consequently all the opposite vices, is in the will as its subject. Hence simony is fittingly defined from its relation to the will. This act is furthermore described as "express," in order to signify that it proceeds from choice, which takes the principal part in virtue and vice. Nor does everyone sin against the Holy Ghost that sins from choice, but only he who chooses sin through contempt of those things whereby man is wont to be withdrawn from sin, as stated above (Q[14], A[1]).

Reply to Objection 3: The kingdom of heaven is said to be bought when a man gives what he has for God's sake. But this is to employ the term "buying" in a wide sense, and as synonymous with merit: nor does it reach to the perfect signification of buying, both because neither "the sufferings of this time," nor any gift or deed of ours, "are worthy to be compared with the glory to come, that shall be revealed in us" (Rom. 8:18), and because merit consists chiefly, not in an outward gift, action or passion, but in an inward affection.

Reply to Objection 4: Simon the magician wished to buy a spiritual power in order that afterwards he might sell it. For it is written (I, qu. iii [*Can. Salvator]), that "Simon the magician wished to buy the gift of the Holy Ghost, in order that he might make money by selling the signs to be wrought by him." Hence those who sell spiritual things are likened in intention to Simon the magician: while those who wish to buy them are likened to him in act. Those who sell them imitate, in act, Giezi the disciple of Eliseus, of whom we read (4 Kings 5:20-24) that he received money from the leper who was healed: wherefore the sellers of spiritual things may be called not only "simoniacs" but also "giezites."

Reply to Objection 5: The terms "buying" and "selling" cover all kinds of non-gratuitous contracts. Wherefore it is impossible for the exchange or agency of prebends or ecclesiastical benefices to be made by authority of the parties concerned without danger of committing simony, as laid down by law [*Cap. Quaesitum, de rerum Permutat.; cap. Super, de Transact.]. Nevertheless the superior, in virtue of his office, can cause these exchanges to be made for useful or necessary reasons.

Reply to Objection 6: Even as the soul lives by itself, while the body lives through being united to the soul; so, too, certain things are spiritual by themselves, such as the sacraments and the like, while others are called spiritual, through adhering to those others. Hence (I, qu. iii, cap. Siquis objecerit) it is stated that "spiritual things do not progress without corporal things, even as the soul has no bodily life without the body."

Reply to Objection 7: The Pope can be guilty of the vice of simony, like any other man, since the higher a man's position the more grievous is his sin. For although the possessions of the Church belong to him as dispenser in chief, they are not his as master and owner. Therefore, were he to accept money from the income of any church in exchange for a spiritual thing, he would not escape being guilty of the vice of simony. In like manner he might commit simony by accepting from a layman moneys not belonging to the goods of the Church.

Whether it is always unlawful to give money for the sacraments?

Objection 1: It would seem that it is not always unlawful to give money for the sacraments. Baptism is the door of the sacraments, as we shall state in the TP, Q[68], A[6]; TP, Q[73], A[3]. But seemingly it is lawful in certain cases to give money for Baptism, for instance if a priest were unwilling to baptize a dying child without being paid. Therefore it is not always unlawful to buy or sell the sacraments.

Objection 2: Further, the greatest of the sacraments is the Eucharist, which is consecrated in the Mass. But some priests receive a prebend or money for singing masses. Much more therefore is it lawful to buy or sell the other sacraments.

Objection 3: Further, the sacrament of Penance is a necessary sacrament consisting chiefly in the absolution. But some persons demand money when absolving from excommunication. Therefore it is not always unlawful to buy or sell a sacrament.

Objection 4: Further, custom makes that which otherwise were sinful to be not sinful; thus Augustine says (Contra Faust. xxii, 47) that "it was no crime to have several wives, so long as it was the custom." Now it is the custom in some places to give something in the consecration of bishops, blessings of abbots, ordinations of the clergy, in exchange for the chrism, holy oil, and so forth. Therefore it would seem that it is not unlawful.

Objection 5: Further, it happens sometimes that someone maliciously hinders a person from obtaining a bishopric or some like dignity. But it is lawful for a man to make good his grievance. Therefore it is lawful, seemingly, in such a case to give money for a bishopric or a like ecclesiastical dignity.

Objection 6: Further, marriage is a sacrament. But sometimes money is given for marriage. Therefore it is lawful to sell a sacrament.

On the contrary, It is written (I, qu. i [*Can. Qui per pecunias]): "Whosoever shall consecrate anyone for money, let him be cut off from the priesthood."

I answer that, The sacraments of the New Law are of all things most spiritual, inasmuch as they are the cause of spiritual grace, on which no price can be set, and which is essentially incompatible with a non-gratuitous giving. Now the sacraments are dispensed through the ministers of the Church, whom the people are bound to support, according to the words of the Apostle (1 Cor. 9:13), "Know you not, that they who work in the holy place, eat the things that are of the holy place; and they that serve the altar, partake with the altar?"

Accordingly we must answer that to receive money for the spiritual grace of the sacraments, is the sin of simony, which cannot be excused by any custom whatever, since "custom does not prevail over natural or divine law" [*Cap. Cum tanto, de Consuetud.; cf. FS, Q[97], A[3]]. Now by money we are to understand anything that has a pecuniary value, as the Philosopher states (Ethic. iv, 1). On the other hand, to receive anything for the support of those who administer the sacraments, in accordance with the statutes of the Church and approved customs, is not simony, nor is it a sin. For it is received not as a price of goods, but as a payment for their need. Hence a gloss of Augustine on 1 Tim. 5:17, "Let the priests that rule well," says: "They should look to the people for a supply to their need, but to the Lord for the reward of their ministry."

Reply to Objection 1: In a case of necessity anyone may baptize. And since nowise ought one to sin, if the priest be unwilling to baptize without being paid, one must act as though there were no priest available for the baptism. Hence the person who is in charge of the child can, in such a case, lawfully baptize it, or cause it to be baptized by anyone else. He could, however, lawfully buy the water from the priest, because it is merely a bodily element. But if it were an adult in danger

of death that wished to be baptized, and the priest were unwilling to baptize him without being paid, he ought, if possible, to be baptized by someone else. And if he is unable to have recourse to another, he must by no means pay a price for Baptism, and should rather die without being baptized, because for him the baptism of desire would supply the lack of the sacrament.

Reply to Objection 2: The priest receives money, not as the price for consecrating the Eucharist, or for singing the Mass (for this would be simoniacal), but as payment for his livelihood, as stated above.

Reply to Objection 3: The money exacted of the person absolved is not the price of his absolution (for this would be simoniacal), but a punishment of a past crime for which he was excommunicated.

Reply to Objection 4: As stated above, "custom does not prevail over natural or divine law" whereby simony is forbidden. Wherefore the custom, if such there be, of demanding anything as the price of a spiritual thing, with the intention of buying or selling it, is manifestly simoniacal, especially when the demand is made of a person unwilling to pay. But if the demand be made in payment of a stipend recognized by custom it is not simoniacal, provided there be no intention of buying or selling, but only of doing what is customary, and especially if the demand be acceded to voluntarily. In all these cases, however, one must beware of anything having an appearance of simony or avarice, according to the saying of the Apostle (1 Thess. 5:22), "From all appearance of evil restrain yourselves."

Reply to Objection 5: It would be simoniacal to buy off the opposition of one's rivals, before acquiring the right to a bishopric or any dignity or prebend, by election, appointment or presentation, since this would be to use money as a means of obtaining a spiritual thing. But it is lawful to use money as a means of removing unjust opposition, after one has already acquired that right.

Reply to Objection 6: Some [*Innocent IV on Cap. Cum in Ecclesia, de Simonia] say that it is lawful to give money for Matrimony because no grace is conferred thereby. But this is not altogether true, as we shall state in the Third Part of the work [*XP, Q[42], A[3]]. Wherefore we must reply that Matrimony is not only a sacrament of the Church, but also an office of nature. Consequently it is lawful to give money for Matrimony considered as an office of nature, but unlawful if it be considered as a sacrament of the Church. Hence, according to the law [*Cap. Cum in Ecclesia, de Simonia], it is forbidden to demand anything for the Nuptial Blessing.

Whether it is lawful to give and receive money for spiritual actions?

Objection 1: It seems that it is lawful to give and receive money for spiritual actions. The use of prophecy is a spiritual action. But something used to be given of old for the use of prophecy, as appears from 1 Kings 9:7,8, and 3 Kings 14:3. Therefore it would seem that it is lawful to give and receive money for a spiritual action.

Objection 2: Further, prayer, preaching, divine praise, are most spiritual actions. Now money is given to holy persons in order to obtain the assistance of their prayers, according to Lk. 16:9, "Make unto you friends of the mammon of iniquity." To preachers also, who sow spiritual things, temporal things are due according to the Apostle (1 Cor. 9:14). Moreover, something is given to those who celebrate the divine praises in the ecclesiastical office, and make processions: and

sometimes an annual income is assigned to them. Therefore it is lawful to receive something for spiritual actions.

Objection 3: Further, science is no less spiritual than power. Now it is lawful to receive money for the use of science: thus a lawyer may sell his just advocacy, a physician his advice for health, and a master the exercise of his teaching. Therefore in like manner it would seem lawful for a prelate to receive something for the use of his spiritual power, for instance, for correction, dispensation, and so forth.

Objection 4: Further, religion is the state of spiritual perfection. Now in certain monasteries something is demanded from those who are received there. Therefore it is lawful to demand something for spiritual things.

On the contrary, It is stated (I, qu. i [*Can. Quidquid invisibilis]): "It is absolutely forbidden to make a charge for what is acquired by the consolation of invisible grace, whether by demanding a price or by seeking any kind of return whatever." Now all these spiritual things are acquired through an invisible grace. Therefore it is not lawful to charge a price or return for them.

I answer that, Just as the sacraments are called spiritual, because they confer a spiritual grace, so, too, certain other things are called spiritual, because they flow from spiritual grace and dispose thereto. And yet these things are obtainable through the ministry of men, according to 1 Cor. 9:7, "Who serveth as a soldier at any time at his own charges? Who feedeth the flock, and eateth not of the milk of the flock?" Hence it is simoniacal to sell or buy that which is spiritual in such like actions; but to receive or give something for the support of those who minister spiritual things in accordance with the statutes of the Church and approved customs is lawful, yet in such wise that there be no intention of buying or selling, and that no pressure be brought to bear on those who are unwilling to give, by withholding spiritual things that ought to be administered, for then there would be an appearance of simony. But after the spiritual things have been freely bestowed, then the statutory and customary offerings and other dues may be exacted from those who are unwilling but able to pay, if the superior authorize this to be done.

Reply to Objection 1: As Jerome says in his commentary on Mic. 3:9, certain gifts were freely offered to the good prophets, for their livelihood, but not as a price for the exercise of their gift of prophecy. Wicked prophets, however, abused this exercise by demanding payment for it.

Reply to Objection 2: Those who give alms to the poor in order to obtain from them the assistance of their prayers do not give with the intent of buying their prayers; but by their gratuitous beneficence inspire the poor with the mind to pray for them freely and out of charity. Temporal things are due to the preacher as means for his support, not as a price of the words he preaches. Hence a gloss on 1 Tim. 5:11, "Let the priests that rule well," says: "Their need allows them to receive the wherewithal to live, charity demands that this should be given to them: yet the Gospel is not for sale, nor is a livelihood the object of preaching: for if they sell it for this purpose, they sell a great thing for a contemptible price." In like manner temporal things are given to those who praise God by celebrating the divine office whether for the living or for the dead, not as a price but as a means of livelihood; and the same purpose is fulfilled when alms are received for making processions in funerals. Yet it is simoniacal to do such things by contract, or with the intention of buying or selling. Hence it would be an unlawful ordinance if it were decreed in any church that no procession would take place at a funeral unless a certain sum of money were paid, because such an ordinance would preclude the free granting of pious offices to any person. The ordinance would be more in keeping with the law, if it were decreed that this honor would be accorded to all who

gave a certain alms, because this would not preclude its being granted to others. Moreover, the former ordinance has the appearance of an exaction, whereas the latter bears a likeness to a gratuitous remuneration.

Reply to Objection 3: A person to whom a spiritual power is entrusted is bound by virtue of his office to exercise the power entrusted to him in dispensing spiritual things. Moreover, he receives a statutory payment from the funds of the Church as a means of livelihood. Therefore, if he were to accept anything for the exercise of his spiritual power, this would imply, not a hiring of his labor (which he is bound to give, as a duty arising out of the office he has accepted), but a sale of the very use of a spiritual grace. For this reason it is unlawful for him to receive anything for any dispensing whatever, or for allowing someone else to take his duty, or for correcting his subjects, or for omitting to correct them. On the other hand it is lawful for him to receive "procurations," when he visits his subjects, not as a price for correcting them, but as a means of livelihood. He that is possessed of science, without having taken upon himself the obligation of using it for the benefit of others can lawfully receive a price for his learning or advice, since this is not a sale of truth or science, but a hiring of labor. If, on the other hand, he be so bound by virtue of his office, this would amount to a sale of the truth, and consequently he would sin grievously. For instance, those who in certain churches are appointed to instruct the clerics of that church and other poor persons, and are in receipt of an ecclesiastical benefice for so doing, are not allowed to receive anything in return, either for teaching, or for celebrating or omitting any feasts.

Reply to Objection 4: It is unlawful to exact or receive anything as price for entering a monastery: but, in the case of small monasteries, that are unable to support so many persons, it is lawful, while entrance to the monastery is free, to accept something for the support of those who are about to be received into the monastery, if its revenues are insufficient. In like manner it is lawful to be easier in admitting to a monastery a person who has proved his regard for that monastery by the generosity of his alms: just as, on the other hand, it is lawful to incite a person's regard for a monastery by means of temporal benefits, in order that he may thereby be induced to enter the monastery; although it is unlawful to agree to give or receive something for entrance into a monastery (I, qu. ii, cap. Quam pio).

Whether it is lawful to receive money for things annexed to spiritual things?

Objection 1: It would seem lawful to receive money for things annexed to spiritual things. Seemingly all temporal things are annexed to spiritual things, since temporal things ought to be sought for the sake of spiritual things. If, therefore, it is unlawful to sell what is annexed to spiritual things, it will be unlawful to sell anything temporal, and this is clearly false.

Objection 2: Further, nothing would seem to be more annexed to spiritual things than consecrated vessels. Yet it is lawful to sell a chalice for the ransom of prisoners, according to Ambrose (De Offic. ii, 28). Therefore it is lawful to sell things annexed to spiritual things.

Objection 3: Further, things annexed to spiritual things include right of burial, right of patronage, and, according to ancient writers, right of the first-born (because before the Lord the first-born exercised the priestly office), and the right to receive tithes. Now Abraham bought from Ephron a double cave for a burying-place (Gn. 23:8, sqq.), and Jacob bought from Esau the right of the first-born (Gn. 25:31, sqq.). Again the right of patronage is transferred with the property sold, and

is granted "in fee." Tithes are granted to certain soldiers, and can be redeemed. Prelates also at times retain for themselves the revenues of prebends of which they have the presentation, although a prebend is something annexed to a spiritual thing. Therefore it is lawful to sell things annexed to spiritual things.

On the contrary, Pope Paschal [*Paschal II] says (cf. I, qu. iii, cap. Si quis objecerit): "Whoever sells one of two such things, that the one is unproductive without the other, leaves neither unsold. Wherefore let no person sell a church, or a prebend, or anything ecclesiastical."

I answer that, A thing may be annexed to spiritual things in two ways. First, as being dependent on spiritual things. Thus to have to spiritual things, because it is not competent save to those who hold a clerical office. Hence such things can by no means exist apart from spiritual things. Consequently it is altogether unlawful to sell such things, because the sale thereof implies the sale of things spiritual. Other things are annexed to spiritual things through being directed thereto, for instance the right of patronage, which is directed to the presentation of clerics to ecclesiastical benefices; and sacred vessels, which are directed to the use of the sacraments. Wherefore such things as these do not presuppose spiritual things, but precede them in the order of time. Hence in a way they can be sold, but not as annexed to spiritual things.

Reply to Objection 1: All things temporal are annexed to spiritual things, as to their end, wherefore it is lawful to sell temporal things, but their relation to spiritual things cannot be the matter of a lawful sale.

Reply to Objection 2: Sacred vessels also are annexed to spiritual things as to their end, wherefore their consecration cannot be sold. Yet their material can be sold for the needs of the Church or of the poor provided they first be broken, after prayer has been said over them, since when once broken, they are considered to be no longer sacred vessels but mere metal: so that if like vessels were to be made out of the same material they would have to be consecrated again.

Reply to Objection 3: We have no authority for supposing that the double cave which Abraham bought for a burial place was consecrated for that purpose: wherefore Abraham could lawfully buy that site to be used for burial, in order to turn it into a sepulchre: even so it would be lawful now to buy an ordinary field as a site for a cemetery or even a church. Nevertheless because even among the Gentiles burial places are looked upon as religious, if Ephron intended to accept the price as payment for a burial place, he sinned in selling, though Abraham did not sin in buying, because he intended merely to buy an ordinary plot of ground. Even now, it is lawful in a case of necessity to sell or buy land on which there has previously been a church, as we have also said with regard to sacred vessels (Reply OBJ[2]). Or again, Abraham is to be excused because he thus freed himself of a grievance. For although Ephron offered him the burial place for nothing, Abraham deemed that he could not accept it gratis without prejudice to himself.

The right of the first-born was due to Jacob by reason of God's choice, according to Malach. 1:2,3, "I have loved Jacob, but have hated Esau." Wherefore Esau sinned by selling his birthright, yet Jacob sinned not in buying, because he is understood to have freed himself of his grievance.

The right of patronage cannot be the matter of a direct sale, nor can it be granted "in fee," but is transferred with the property sold or granted.

The spiritual right of receiving tithes is not granted to layfolk, but merely the temporal commodities which are granted in the name of tithe, as stated above (Q[87], A[3]).

With regard to the granting of benefices it must, however, be observed, that it is not unlawful for a bishop, before presenting a person to a benefice, to decide, for some reason, to retain part of

the revenues of the benefice in question, and to spend it on some pious object. But, on the other hand, if he were to require part of the revenues of that benefice to be given to him by the beneficiary, it would be the same as though he demanded payment from him, and he would not escape the guilt of simony.

Whether it is lawful to grant spiritual things in return for an equivalent of service, or for an oral remuneration?

Objection 1: It would seem that it is lawful to grant spiritual things in return for an equivalent of service, or an oral remuneration. Gregory says (Regist. iii, ep. 18): "It is right that those who serve the interests of the Church should be rewarded." Now an equivalent of service denotes serving the interests of the Church. Therefore it seems lawful to confer ecclesiastical benefices for services received.

Objection 2: Further, to confer an ecclesiastical benefice for service received seems to indicate a carnal intention, no less than to do so on account of kinship. Yet the latter seemingly is not simoniacal since it implies no buying or selling. Therefore neither is the former simoniacal.

Objection 3: Further, that which is done only at another's request would seem to be done gratis: so that apparently it does not involve simony, which consists in buying or selling. Now oral remuneration denotes the conferring of an ecclesiastical benefice at some person's request. Therefore this is not simoniacal.

Objection 4: Further, hypocrites perform spiritual deeds in order that they may receive human praise, which seems to imply oral remuneration: and yet hypocrites are not said to be guilty of simony. Therefore oral remuneration does not entail simony.

On the contrary, Pope Urban [*Urban II, Ep. xvii ad Lucium] says: "Whoever grants or acquires ecclesiastical things, not for the purpose for which they were instituted but for his own profit, in consideration of an oral remuneration or of an equivalent in service rendered or money received, is guilty of simony."

I answer that, As stated above (A[2]), the term "money" denotes "anything that can have a pecuniary value." Now it is evident that a man's service is directed to some kind of usefulness, which has a pecuniary value, wherefore servants are hired for a money wage. Therefore to grant a spiritual thing for a service rendered or to be rendered is the same as to grant it for the money, received or promised, at which that service could be valued. If likewise, to grant a person's request for the bestowal of a temporary favor is directed to some kind of usefulness which has a pecuniary value. Wherefore just as a man contracts the guilt of simony by accepting money or any eternal thing which comes under the head of "real remuneration," so too does he contract it, by receiving "oral remuneration" or an "equivalent in service rendered."

Reply to Objection 1: If a cleric renders a prelate a lawful service, directed to spiritual things (e.g. to the good of the Church, or benefit of her ministers), he becomes worthy of an ecclesiastical benefice by reason of the devotion that led him to render the service, as he would by reason of any other good deed. Hence this is not a case of remuneration for service rendered, such as Gregory has in mind. But if the service be unlawful, or directed to carnal things (e.g. a service rendered to the prelate for the profit of his kindred, or the increase of his patrimony, or the like), it will be a case of remuneration for service rendered, and this will be simony.

Reply to Objection 2: The bestowal of a spiritual thing gratis on a person by reason of kinship or of any carnal affection is unlawful and carnal, but not simoniacal: since nothing is received in return, wherefore it does not imply a contract of buying and selling, on which simony is based. But to present a person to an ecclesiastical benefice with the understanding or intention that he provide for one's kindred from the revenue is manifest simony.

Reply to Objection 3: Oral remuneration denotes either praise that pertains to human favor, which has its price, or a request whereby man's favor is obtained or the contrary avoided. Hence if one intend this chiefly one commits simony. Now to grant a request made for an unworthy person implies, seemingly, that this is one's chief intention wherefore the deed itself is simoniacal. But if the request be made for a worthy person, the deed itself is not simoniacal, because it is based on a worthy cause, on account of which a spiritual thing is granted to the person for whom the request is made. Nevertheless there may be simony in the intention, if one look, not to the worthiness of the person, but to human favor. If, however, a person asks for himself, that he may obtain the cure of souls, his very presumption renders him unworthy, and so his request is made for an unworthy person. But, if one be in need, one may lawfully seek for oneself an ecclesiastical benefice without the cure of souls.

Reply to Objection 4: A hypocrite does not give a spiritual thing for the sake of praise, he only makes a show of it, and under false pretenses stealthily purloins rather than buys human praise: so that seemingly the hypocrite is not guilty of simony.

Whether those who are guilty of simony are fittingly punished by being deprived of what they have acquired by simony?

Objection 1: It would seem that those who are guilty of simony are not fittingly punished by being deprived of what they have acquired by simony. Simony is committed by acquiring spiritual things in return for a remuneration. Now certain spiritual things cannot be lost when once acquired, such as all characters that are imprinted by a consecration. Therefore it is not a fitting punishment for a person to be deprived of what he has acquired simoniacally.

Objection 2: Further, it sometimes happens that one who has obtained the episcopate by simony commands a subject of his to receive orders from him: and apparently the subject should obey, so long as the Church tolerates him. Yet no one ought to receive from him that has not the power to give. Therefore a bishop does not lose his episcopal power, if he has acquired it by simony.

Objection 3: Further, no one should be punished for what was done without his knowledge and consent, since punishment is due for sin which is voluntary, as was shown above (FS, Q[74], AA[1],2; FS, Q[77], A[7]). Now it happens sometimes that a person acquires something spiritual, which others have procured for him without his knowledge and consent. Therefore he should not be punished by being deprived of what has been bestowed on him.

Objection 4: Further, no one should profit by his own sin. Yet, if a person who has acquired an ecclesiastical benefice by simony, were to restore what he has received, this would sometimes turn to the profit of those who had a share in his simony; for instance, when a prelate and his entire chapter have consented to the simony. Therefore that which has been acquired by simony ought not always to be restored.